

Vernon's Texas Statutes and Codes Annotated  
Property Code (Refs & Annos)  
Title 15. Fair Housing Practices  
Chapter 301. Texas Fair Housing Act (Refs & Annos)  
Subchapter H. Enforcement by Private Persons

V.T.C.A., Property Code § 301.151

§ 301.151. Civil Action

Currentness

- (a) An aggrieved person may file a civil action in district court not later than the second year after the date of the occurrence or the termination of an alleged discriminatory housing practice or the breach of a conciliation agreement entered under this chapter, whichever occurs last, to obtain appropriate relief with respect to the discriminatory housing practice or breach.
- (b) The two-year period does not include any time during which an administrative hearing under this chapter is pending with respect to a complaint or charge under this chapter based on the discriminatory housing practice. This subsection does not apply to actions arising from the breach of a conciliation agreement.
- (c) An aggrieved person may file an action whether a complaint has been filed under [Section 301.081](#) and without regard to the status of any complaint filed under that section.
- (d) If the commission has obtained a conciliation agreement with the consent of an aggrieved person, the aggrieved person may not file an action with respect to the alleged discriminatory housing practice that forms the basis of the complaint except to enforce the terms of the agreement.
- (e) An aggrieved person may not file an action with respect to an alleged discriminatory housing practice that forms the basis of a charge issued by the commission if the commission has begun a hearing on the record under this chapter with respect to the charge.

### **Credits**

Added by [Acts 1993, 73rd Leg., ch. 268, § 40, eff. Sept. 1, 1993](#).

### [Notes of Decisions \(13\)](#)

### **O'CONNOR'S NOTES**

**Source:** TRCS [art. 1f, §5.01](#).

### **O'CONNOR'S CROSS REFERENCES**

See also [42 U.S.C.A. §3613\(a\)](#).

V. T. C. A., Property Code § 301.151, TX PROPERTY § 301.151

Current through the end of the 2025 Regular and Second Called Sessions of the 89th Legislature.